

Court No. - 46

Case :- WRIT - C No. - 18168 of 2020

Petitioner :- Tahir

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mohd. Akbar Shah Alam Khan

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Heard Sri Mohd. Akbar Shah Alam Khan, learned counsel for the petitioner, Sri Chandan Agarwal, learned counsel for the respondent no.3 and learned Standing Counsel for the State respondents.

The present writ petition has been filed seeking following reliefs:

"(i) issue a writ, order or direction in the nature of certiorari for quashing the impugned recovery citation dated 29.11.2019 issued by respondent no.4 of amounting Rs. 2,55,735/- (annexure no.1 to this writ petition).

(ii) issue a writ order or direction in the nature of mandamus directing the respondent no.4 not to take any coercive action against the petitioner in pursuance of recovery citation issued against the petitioner by the respondent no.4."

At the outset, learned counsel for the petitioner submits that he is not disputing the amount sought to be recovered by the Power Corporation. He further submits that he is ready and willing to pay the amount in easy instalments.

Sri Chandan Agarwal, learned counsel appearing on behalf of the respondent no.3 submits that under the provisions of Clause 6.14 of the Electricity Supply Code, 2005, if the petitioner approaches the respondent no.3, he will consider the grievance of the petitioner and pass appropriate orders, in accordance with law.

Under such circumstances, the present writ petition is disposed of with the observation that in case the petitioner makes a representation alongwith a copy of this order before the respondent no.3 within two weeks from today, the respondent no.3 shall consider the grievance of the petitioner and pass appropriate orders, in accordance with law, within a period of four weeks therefrom.

It is made clear that if the petitioner fails to approach the

respondent no.3 within the period as indicated above, he shall not be entitled to get the benefit of this order.

Order Date :- 10.11.2020

Lbm/-